

GZ: 2021-0.321.194 of July 2, 2021 (Case Number: DSB-D124.1589)

[Note from the editor: Names and companies, legal forms and product designations, addresses (including URLs, IP and email addresses), file numbers (and the like), etc., as well as their initials and abbreviations may have been abbreviated and/or altered for pseudonymization reasons. Obvious spelling, grammar, and punctuation errors have been corrected.]

DECISION

RULING

The Data Protection Authority decides on the data protection complaints of Dr. Peter B***, MSc (complainant) dated October 22, 2019 (received on October 25, 2019), originally recorded under case numbers DSB-124.1589 and DSB-D124.1590, combined for joint processing under case number DSB-D124.1589, against the Disciplinary Council of the Austrian Medical Chamber - Disciplinary Commission for Styria (respondent), represented by S*** & Partner Rechtsanwälte GmbH, U*** Street **, **** H***, regarding violation of the right to information as follows:

1. The complaint is upheld, and it is established that the respondent has violated the complainant's right to information by failing to provide information in accordance with Art. 15 GDPR in response to the request dated August 8, 2019.
2. The respondent is ordered to provide the complainant with information within a period of four weeks in accordance with point 1 of the ruling or to provide a reasoned statement as to why no information will be provided.

Legal bases: Art. 12 para. 3, Art. 15, Art. 51 para. 1, Art. 57 para. 1 lit. f, Art. 58 para. 2 lit. c, and Art. 77 para. 1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter: GDPR), OJ No. L 119 of May 4, 2016, p. 1; §§ 18 para. 1 and 24 para. 1, para. 2 no. 5 and para. 5 of the Data Protection Act (DSG), Federal Law Gazette I No. 165/1999 as amended; §§ 117, 120 no. 9, 140, 145, 146, 149, 159, and 160 of the Medical Act 1998 (ÄrzteG 1998), Federal Law Gazette I No. 169/1998 as amended.

REASONING

A. Submissions of the parties and procedural history

A.1. The complainant alleged in his submissions dated October 22, 2019 (received on October 25, 2019) a violation of the right to information. In summary, it was claimed that the complainant had submitted a request for information on August 8, 2019, to 1. the Disciplinary Council of the Austrian Medical Chamber and 2. the Disciplinary Commission for Styria. On September 5, 2019, he received a response from each entity stating that they could "never be the controller in the sense of Art. 15 GDPR." The complainant believes that this assertion is not to be followed.

A.2. In a statement dated November 28, 2019, the respondent summarized that the Disciplinary Council of the Austrian Medical Chamber and the Disciplinary Commission for Styria do not possess independent legal personality. The Disciplinary Council of the Austrian Medical Chamber is an organ of the Austrian Medical Chamber, and the Disciplinary Commission is to be established within the jurisdiction of each regional court. The Austrian Medical Chamber determines the means and purposes of data processing within the framework of the Disciplinary Council based on the legal provisions of the Medical Act, which is why it is responsible. Furthermore, there is a parallel procedure against the Austrian Medical Chamber pending before the Data Protection Authority under case number DSB.D124.1592.

A.3. The Data Protection Authority informed the parties with a decision dated February 19, 2020, as follows (excerpt, formatting not reproduced 1:1):

"Subject: Notification from the Data Protection Authority; Procedural Connection

For reasons of procedural economy, expediency, speed, cost savings, and simplicity, the Data Protection Authority is entitled to connect several proceedings for joint hearing and decision ex officio. The proceedings under case number DSB-D124.1589 (Dr. Peter B***, MSc/Disciplinary Commission for Styria) and case number DSB-D124.1590 (Dr. Peter B***, MSc/Disciplinary Council of the Austrian Medical Chamber) are hereby connected pursuant to § 39 para. 2 of the General Administrative Procedure Act 1991, Federal Law Gazette No. 51/1991 as amended, to case number DSB-D124.1589.

The underlying facts are the same, and moreover, the previous submissions of the complainant and the respondent are nearly identical.

The proceedings are also suitable for joint processing in principle.

This letter serves for acknowledgment."

A.4. The complainant did not further comment – despite being given the opportunity in the form of a hearing – on the joint statement of the respondents.

B. Subject of the Complaint

Based on the submissions of the complainant, it follows that the subject of the complaint is the question of whether the respondent has violated the complainant's right to information by not providing information in accordance with Art. 15 para. 1 GDPR in response to the request dated August 8, 2019.

C. Findings of Facts

C.1. The complainant submitted a request for information on August 8, 2019, to 1. the Disciplinary Council of the Austrian Medical Chamber, 2. the Disciplinary Commission for Styria, and 3. the Austrian Medical Chamber. The Disciplinary Council of the Austrian Medical Chamber and the Disciplinary Commission for Styria informed the complainant by letter dated September 5, 2019, that they were not data protection controllers and did not provide any information.

Assessment of Evidence for C.1.: The findings are based on the submissions of the complainant dated October 22, 2019 (received on October 25, 2019) regarding file numbers DSB-124.1589 and DSB-D124.1590, as well as on the correspondence of the parties contained therein, which preceded the complaint procedure.

C.2. The Data Protection Authority conducted a complaint procedure under file number DSB-D124.1592 (complainant against the Austrian Medical Chamber). This was informally closed due to the subsequent provision of information by the Austrian Medical Chamber.

Assessment of Evidence for C.2.: The findings are based on the file situation regarding the procedure under file number DSB-D124.1592.

D. From a legal perspective, it follows:

1. Regarding the Respondent

It should be noted at the outset that the complainant originally filed two complaints against 1. the Disciplinary Commission for Styria under file number DSB-D124.1589 and 2. the Disciplinary Council of the Austrian Medical Chamber under file number DSB-D124.1590.

At the federal level, the Austrian Medical Chamber is established to represent the medical profession, as well as a medical chamber at the respective state level. The Disciplinary Council is an organ of the Austrian Medical Chamber. It decides on disciplinary offenses.

Within the framework of the Disciplinary Council, at least one Disciplinary Commission must be established for the conduct of disciplinary proceedings for the area of each Higher Regional Court district.

From the case law of the Administrative Court (VwGH), it follows that the "Disciplinary Council of the Austrian Medical Chamber - Disciplinary Commission for [local area of jurisdiction]" is the disciplinary authority for registered doctors in the respective area of jurisdiction and that it has party status in administrative legal proceedings (cf. VwGH 12.10.2020, Ro 2020/09/0009).

For party submissions, not only the wording of the complaint but also the intent of the party is relevant.

The existence of prerequisites is not to be interpreted strictly formally, as long as the subject of the proceedings—albeit according to the interpretation of the submissions in accordance with §§ 6 and 7 of the Austrian Civil Code (ABGB)—is clearly recognizable, thus without the possibility of confusion (VwGH 13.11.2014, Ra 2014/12/0010). For the assessment of a submission, the designations and incidental verbal forms are not what matters, but rather the content of the submission, i.e., the recognizable or ascertainable goal of a party action (VwGH 27.11.1998, file number 95/21/0912).

In the present case, the complainant's complaint is evidently aimed at obtaining information on whether and, if so, which of his data is processed in connection with a disciplinary proceeding within the jurisdiction of the Disciplinary Council.

Since the assessment that the respondent must correctly be the "Disciplinary Council of the Austrian

Medical Chamber - Disciplinary Commission for Styria" requires legal expertise that cannot be demanded from the (unrepresented) complainant, the respondent was to be reinterpreted in the sense of a complainant-friendly interpretation.

Since this is a legal assessment, no further hearing of the parties was to be granted to the respondent in this regard (cf. VwGH 22.4.2021, Ra 2021/19/0088).

2. Regarding Point of Decision 1

a) General Information on the Distribution of Roles in Data Protection Law

The determination of the distribution of roles in data protection law is crucial for the complaint procedure under Art. 77 para. 1 GDPR, as it determines who is responsible for compliance with the respective data protection provisions, how the affected person can exercise their rights, and ultimately against whom the data protection complaint must be directed (respondent). In this context, it should be noted that the obligation to provide information under Art. 12 para. 3 GDPR only applies to the data protection controller.

According to Art. 4 no. 7 GDPR, the data controller is the natural or legal person, authority, institution, or other body that alone or jointly with others determines the purposes and means of processing personal data.

Here is the translated text:

The essential criterion is the decision-making component. The role of the responsible party thus primarily arises from the fact that a specific entity has effectively decided to process personal data for its own purposes. The "purpose" describes an expected outcome, while the "means" determine how the expected outcome is to be achieved (cf. the EDSA Guidelines of September 2, 2020, 07/2020 on the concept of the controller and processor, para. 15 ff).

b. Distribution of Data Protection Roles in the Matter

Applied to the present case, these statements mean the following: The respondent is responsible for conducting disciplinary proceedings as a disciplinary authority for registered physicians and may, under certain circumstances, also conclude such proceedings with a decision (cf. again VwGH 12.10.2020, Ro 2020/09/0009).

The respondent carries out this activity within disciplinary commissions. The members of this commission must be impartial (§ 146 ff ÄrzteG), can independently access files at courts and administrative authorities (§ 149 ÄrzteG), as well as decide on the initiation of prosecution actions (§ 151 Abs. 2 ÄrzteG) and the collection of evidence within the framework of a disciplinary proceeding (§ 159 ÄrzteG), and resolve the matter independently of the Austrian Medical Chamber (§ 160 ÄrzteG). As a result, the respondent makes the factual decision regarding purposes (fulfillment of the tasks legally assigned to it) and means (determination of the personal data that must be processed for the conduct of disciplinary proceedings) independently of the Austrian Medical Chamber, which is why it is this entity and not the Austrian Medical Chamber that is responsible for data processing in connection with a disciplinary proceeding of the medical profession in accordance with Art. 4 No. 7 GDPR.

c. Right to Information

The fact that the complainant submitted a "separate" request for information to 1. the Disciplinary Commission for Styria and 2. the Disciplinary Council of the Austrian Medical Chamber does not play a role in light of Art. 12 Abs. 2 GDPR, according to which the controller must facilitate the exercise of the rights of the data subject.

Under a correct assessment of the data protection roles, the respondent should have concluded that the complainant is entitled to a negative or positive response regarding his request dated August 8, 2019, in accordance with Art. 15 Abs. 1 GDPR.

Furthermore, as stated by the respondent, the (subsequently) provided information on September 9, 2019, by the Austrian Medical Chamber in the proceedings under Zl. DSB-D124.1592 does not eliminate the complaint in the present proceedings, as information can only be provided by the controller (and not by third parties).

With a different view, it would also be completely unclear to the complainant which of his data is processed by the Austrian Medical Chamber and which of his data is processed by the respondent as the responsible disciplinary authority, as the aforementioned information from September 9, 2019, was only provided in the name of the Austrian Medical Chamber. Such a view is incompatible with the requirement for comprehensibility stipulated in Art. 12 Abs. 1 GDPR.

The discontinuation of the proceedings regarding DSB-D124.1592 occurs solely in relation to the Austrian Medical Chamber as the party involved there and not in relation to the respondent relevant here.

d. Result

In conclusion, a violation was to be established in accordance with § 24 Abs. 2 No. 5 DSG.

3. Regarding Point 2

Furthermore, the respondent was to be ordered to provide information in accordance with Art. 58 Abs. 2 lit. c GDPR in conjunction with § 24 Abs. 5 DSG.

The respondent is therefore required to research its data holdings and to provide the complainant – taking into account any restrictions under Art. 15 Abs. 4 or Art. 23 – with a data protection-related response in accordance with Art. 15 GDPR or to inform him in a reasoned manner why no information is provided.

A period of four weeks is considered appropriate by the Data Protection Authority to fulfill the right to information.

It was therefore to be decided accordingly.